

the Court does note, the proof of service fails to indicate Defendant Barth was service with a copy of the Notice of Case Management Conference and admonishes Plaintiff such must still occur.

8. CU0002779 EDIK MEZHLUMYAN vs. KASHMIR SINGH et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for over four (4) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference date set for November 20, 2026 at 9:00 a.m.

9. CU0002801 In the Matter of Irina Naduhovskaya

No appearance required. Petitioner is directed to correct the issues below. The matter is continued to October 12, 2026 at 1:30 p.m. in Dept. A. Petitioner shall submit an Amended Petition no later than one week prior to the continued hearing date. Should counsel for Petitioner wish to appear on September 28, 2026 at 1:30 p.m. to walk through these issues with the Court, he may do so.

- The Court notes a petition requesting appointment of a guardian ad litem in this matter was filed on August 21, 2026, yet no proposed order was filed. Petitioner shall submit a proposed order re same.
- Issues with the Medical Expenses and Net Settlement Amount:
 - 12.a: The amount in 12.a(1) (\$3,727.00 as the total amount incurred) is not reflected elsewhere including in any attachments, nor is the amount of reductions in 12.a(3) (\$429.80) set forth anywhere else. In fact, 12(b)(2)(f)(ii)(C) indicates no reduction has been agreed to.
 - Further, please correct these discrepancies. 12.a states medical expenses paid in the amount of \$3,727.00, including:
 - \$989.71 paid by private health insurance;
 - \$429.80 in reductions;
 - \$989.71 total medical expenses to be paid or reimbursed from the proceeds; and
 - \$989.71 total amount of statutory or contractual liens.

Yet, the only billing provided indicates an amount owing to Tahoe Forest Hospital related to this incident in the sum of \$2,631.87, an amount indicated nowhere else in the petition. (Rather, the amount of \$3,727.00 is indicated as the total of expenses.) There is no evidence of a reduction of \$429.80, nor is there an explanation as to why there is an assertion \$989.71 has been paid, \$989.71 is to be paid, and \$989.71 is lien.

- 12.a(4) and 12.a(5) indicates there are both medical expenses to be reimbursed to an insurance plan and a statutory or contractual lien. However, only 12.b(2) shows a reimbursement with no reduction in the amount of \$989.71 is to be made to the plan, but 12.b(5)(ii) regarding statutory or contractual liens is unchecked.
- 14 is not filled out and does not include medical expenses listed in 12 or attorney's fees listed in 13a.

- 15 and 16: appear to exclude medical expenses paid by petitioner based on the total amount listed in 12.a.

10. CU14-080744 TIMOTHY P DEMARTINI et al vs. MICHAEL J DEMARTINI et al

This case involves litigation that has now spanned more than a decade and still persists. The Court issued a Judgment in this matter on September 11, 2023. In that Judgment the Court ordered as follows:

“In the event plaintiffs and/or defendant James C. DeMartini in his capacity as Trustee of the Testamentary Trust under the Will of James P. DeMartini dated December 9, 1982 desire an award of costs....” See, Judgment, pg. 23, ll. 14-16. Clearly, the Court was indicating it found these three parties were solely entitled to seek an award of costs.

Subsequently, plaintiffs Timothy and Margie DeMartini sought an award of costs. Defendant James C. DeMartini, Trustee, did not.

On October 9, 2023, the Court found Plaintiffs were the prevailing parties in this action, and, on November 20, 2023, the Court issued an Order Re Prevailing Party for Costs.

On December 18, 2023, the Court issued its Order Re Motion to tax Cost Bill resulting in an order awarding Plaintiffs costs in the total sum of \$11,433.35.

INHERENT AUTHORITY TO CORRECT ORDERS

“It is not open to question that a court has the inherent power to correct clerical errors in its records so as to make these records reflect the true facts. *People v. Schultz* (1965) 238 Cal.App.2d 804, 807, 48 Cal.Rptr. 328; *People v. Flores* (1960) 177 Cal.App.2d 610, 613, 2 Cal.Rptr. 363.) The power exists independently of statute and may be exercised in criminal as well as in civil cases. (*People v. Flores, supra*, at p. 613, 2 Cal.Rptr. 363.) The power is unaffected by the pendency of an appeal or a habeas corpus proceeding. (*In re Roberts* (1962) 200 Cal.App.2d 95, 97, 19 Cal.Rptr. 147.) The court may correct such errors on its own motion or upon the application of the parties. (*People v. Flores, supra*, at p. 613, 2 Cal.Rptr. 363.)” *In re Candelario* (1970) 3 Cal.3d 702, 705.

Thus, the Court has inherent authority to correct its rulings nunc pro tunc, including an award of costs, such that the record correctly sets forth the Court’s original intent and sets forth the truth. See, *Stewart v. Abernathy* (1944) 62 Cal.App.2d 429, 434.

Further, the Court’s ability to correct/clarify its prior order is not affected by the filing of any appeal where the amendment to a prior ruling does not affect a litigant’s substantial rights on appeal. *Stewart, supra*, 62 Cal.App.2d at 434.

Regarding the instant matter, **at no time was it or has it been** the Court’s intent to order costs paid by anyone other than defendants Michael and Renate DeMartini. These defendants have always been and still are the primary (if not sole) drivers of this litigation. But for their refusal to agree to dissolution of a partnership where the partners, by their own admission, did not trust one another and could not manage together, this litigation would not have occurred. Although